

DESCRIPTION/SPECIFICATION/PERFORMANCE WORK STATEMENT

C.1. GENERAL INFORMATION/BACKGROUND

The intent of this contract is to obtain grounds maintenance service for the Memphis Internal Revenue Service/Enterprise Computer Center Campus (MIRSC), located at 5333 Getwell Road, Memphis, TN 38118, GSA Building Number TN0005ZZ ("Campus"), by means of a performance-based contract. The facility consists of grounds totaling 109 acres of lawn, trees, ponds (wet and dry), natural areas, roads, and sidewalks. As a performance-based contract, the requirements are stated in terms of desired results with associated quality standards. The contract shall consist of two major functional areas: Basic Services ("Basic Services") and Additional Services ("Additional Services"), collectively ("Services") as specified herein.

C.1.1 SCOPE OF WORK/OBJECTIVES

The Contractor shall provide all supervision, administrative and technical support, equipment, labor, management, materials, personnel, subcontractors, supplies, tools, transportation (except as expressly set forth as Government furnished), and shall plan, schedule, coordinate and assure effective completion of all services described herein.

C.1.2 OVERVIEW OF BASIC SERVICES

Basic Services (as defined in Paragraph C.2) shall be provided at a firm-fixed monthly price. The Contractor shall determine how often the work is to be performed, how much labor is needed to perform the tasks, what methods will be used to complete the job and which supplies, materials and equipment are needed to perform Basic Services. The Contractor shall submit to the Contracting Officer Representative (COR) a schedule of **monthly** grounds maintenance services for planning purposes within a timeframe mutually agreed upon (but no later than 30 days) after contract award and within five work days prior to start of each option period (if exercised).

C.1.3 OVERVIEW OF ADDITIONAL SERVICES

Additional Services shall be ordered separately on an as-needed basis in accordance with contract terms. Additional Services will be authorized by fixed-price work order(s) based on fixed hourly rates established in the contract. Additional Services requirements shall be ordered through issuance of work orders by the Authorized Ordering Official.

There is no guarantee that any Additional Services will be ordered. Additional Services work orders shall be requested by the Government in writing **and shall not be diverted from daily productivity.**

A ceiling price for each of the contract line items for Additional Services will be established at time of contract award based on estimated amounts. The ceiling price for Additional Services for the base period will be funded at the time of contract award [subject to the availability of funds and thru modification(s) if necessary] and the ceiling price for Additional Services for option periods will be funded at the time the option is exercised [subject to the availability of funds and thru modification(s) if necessary]. The ceiling price shall not be exceeded without the Contracting Officer's (CO) prior approval. To exceed the ceiling price without prior approval will be at the Contractor's own risk. Adjustments (up or down) to the ceiling price for any contract line item for Additional Services shall be performed by the Contracting Officer through modification(s).

C.1.4. SCHEDULE AND NORMAL WORKING HOURS

The Contractor shall schedule and arrange work to cause the least interference with the normal occurrence of Government business and mission. Grounds maintenance (with the exception of herbiciding and mulching of the courtyards and unless otherwise notified), shall be performed between the hours of 6:00 AM to 7:00 PM, Monday through Friday except Federal holidays and other days the building is closed. Herbiciding and mulching in the courtyards shall be performed on Saturdays between the hours of 12:30 PM to 7:00 PM. However, Contractor's personnel shall enter building gate no later than 3:30 PM on Saturdays. Work delayed by causes beyond the Contractor's control and performed beyond normal duty hours and/or non-scheduled days shall be performed at no additional cost to the Government. Examples: Federal holidays, inclement weather, extended power outages.

The Enterprise Computer Center (ECC), which includes the MIRSC, operates 24 hours 7 days a week, and the Government's primary operation at the MIRSC is conducted on day and night shifts, encompassing the hours of 6:00 AM to 3:30 AM Monday through Friday, except Federal holidays or any other day(s) designated by Federal Statute, Executive Order, or Presidential Proclamation. The ten Federal holidays at the Campus include New Year's Day, Martin Luther King Day, President's Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day.

C.1.5. PROJECT MANAGEMENT/SUPERVISION

The Contractor shall provide sufficient onsite project management and supervision as is essential to carry out all the terms and conditions of this contract. The Supervisor(s) shall be present onsite at all time when work is being performed and be available to interact with either the CO or the COR as needed. The Project Manager(s) shall oversee the overall operation under the contract and be available to interact with either the CO or the COR as needed. Five work days after contract start, the Contractor shall provide to the COR the name, location, and telephone number of the Project Manager(s) and Supervisor(s) specifically designated for this contract. The Project Manager(s) and Supervisor(s) must be fluent in reading, writing, and speaking English. Internal Revenue Service (IRS) employees are not authorized to exercise either direct or indirect supervision over the Contractor's employees.

C.1.6 OTHER INFORMATION

a. Additional information for performance of Services shall be provided upon request.

The data provided in the documents above are estimates only, and the Contractor is responsible for verifying information.

b. The Contractor shall utilize methods (such as latest innovation, technology, etc.) that are most efficient in performing the grounds maintenance for the facility.

c. The Contractor is responsible for providing personal protective equipment to employees and ensuring that the appropriate attire is worn.

d. The Contractor shall provide and implement an effective Quality Control Plan (QCP), conforming to quality requirements.

e. The Contractor shall reduce the environmental impacts of work performed under this contract by using, to the maximum extent, environmentally sound practices, processes, and products.

f. The Contractor shall keep the COR informed of current status of the work being performed, through provided work schedules and any other pertinent information.

g. The Contractor shall give an updated listing of Ground Maintenance Inventory.

h. The Contractor shall give an updated listing of types of trees, shrubs, and flowers.

C.2 DEFINITIONS / ACRONYMS / ABBREVIATIONS

As used throughout this contract the following terms shall have the meaning set forth below and specified as applicable to this contract.

C.2.1 GENERAL DEFINITIONS

- 1) **Acceptable Quality Level (AQL)** - The standard at which service is considered satisfactory as agreed upon by the Contractor and Government.

- 2) **Additional Services** – Services intended to satisfy the Government's short term, non-recurring need on an as-needed basis at fixed priced work orders based on established fixed hourly rate.
- 3) **Alternate Dispute Resolution (ADR)** – Process for the resolution of disputes regarding work determined to be unsatisfactory.
- 4) **Basic Services** – Those recurring services provided at the facility as defined in this contract.
- 5) **Contractor** - The term Contractor as used herein refers to both the prime Contractor and any subcontractors. The prime Contractor shall ensure that subcontractors comply with the provisions of this contract.
- 6) **Contract Work Inspector (CWI)** - An individual designated to be responsible for conducting inspections of the building and grounds to determine Contractor's compliance with terms and conditions of the contract.
- 7) **Contracting Officer (CO)** - One with the authority to enter into, administer, and/or terminate contracts and make related determinations.
- 8) **Contracting Officer's Representative (COR)** – One who is designated and authorized in writing by the CO to be responsible for surveillance/monitoring of the Contractor's performance.
- 9) **Contractor Owned Property** – All property owned or furnished by the Contractor.
- 10) **Contractor Representative/Project Manager** – An onsite foreman or superintendent assigned by the Contractor to manage the project.
- 11) **Defective Service** - A service output that does not meet the standard of performance associated with it.
- 12) **Government Owned Property** – All property owned by or leased to the Government or acquired by the Government under the terms of the contract. Government property includes both Government-furnished property and Contractor acquired property as defined in FAR 45.101.
- 13) **Performance Requirements** – Works to be performed by the Contractor.
- 14) **Performance Requirements Summary (PRS)** – An outline of contract requirements that identifies the key service outputs of the contract that will be inspected/surveilled by the Government, and related performance

standards, method(s) of performance assessment and surveillance, and portion of required service to total contract value.

- 15) **Performance Standard** – The desired results, expressed by the Government, expected from performance of contract services, to satisfy the requirement.
- 16) **Quality Assurance (QA)** – Those actions taken by the Government to assure services meet the acceptable quality level established in the contract.
- 17) **Quality Assurance Surveillance Plan (QASP)** – An organized written and “living” document outlining the Government’s methodology for monitoring and documenting Contractor performance.
- 18) **Quality Control (QC)** – Those actions taken by the Contractor to ensure Contractor performance meets the requirements of the contract.
- 19) **Response Time** – The time allowed the Contractor after initial notification of a work requirement to be physically on the premises at the worksite, with appropriate tools, equipment, and materials, ready to perform the work required.

C.2.2 DEFINITIONS THAT APPLY TO GROUNDS MAINTENANCE

- 1) **Debris** – Includes, but not limited to, man-made items, i.e., paper, cans, and bottles; and biodegradable items, i.e., limbs and branches, mud, pine straw and pinecones, mulch, leaves, rocks, and similar items.
- 2) **Diameter at Breast Height (DBH)** – As measured, 4.5 feet above ground level.
- 3) **Environmental Protection Agency (EPA)** – The Federal agency delegated authority to enforce the Federal Insecticide, Fungicide and Rodenticide Act (FIFRA).
- 4) **Grounds Maintenance** – Represented by healthy, evenly cut green grass, neatly edged, free of weeds and debris, and an overall appearance of well-manicured grounds; beds maintained weed-free with healthy, correctly pruned, fertilized, mulched plants and healthy flowers; straight standing, healthy trees free of insects and disease.
- 5) **Irrigation** – Involves the artificial application of water to promote proper health, growth, color, and appearance of cultivated vegetation. RAINBIRD irrigation system is installed at the facility.

- 6) **Parcel** – A given area of land.

C.2.3 ACRONYMS

AQL - Acceptable Quality Level
CLIN - Contract Line Item Number
COR - Contracting Officer's Representative
EPA - Environmental Protection Agency
FAR - Federal Acquisition Regulation
GFP - Government Furnished Property
SDS - Safety Data Sheet
OSHA - Occupational Safety and Health Administration
PRS - Performance Requirement Summary
O&M - Operations and Maintenance
QA - Quality Assurance
QASP - Quality Assurance Surveillance Plan
QC - Quality Control
QCP - Quality Control Plan
SF - Square Foot

C.3 GOVERNMENT FURNISHED PROPERTY (GFP) AND SERVICES

The Government shall provide the Contractor with the Government furnished items (in an "as-is" condition). The use of GFP for purposes other than official Government business in performance of work under this contract is prohibited.

C.4 CONTRACTOR FURNISHED ITEMS

Except for the property and services referenced in Paragraph C.3, the Contractor shall provide all facilities, equipment, materials, and services to perform the requirements of this contract. After work requirements have been accomplished each day, all contractor equipment used for Services shall be removed from the worksite.

C.5 QUALIFICATIONS OF PERSONNEL

Contractor shall have a fully trained staff on the first day of contract performance and be prepared to maintain a fully trained staff throughout the life of the contract. All personnel shall be fluent in reading and speaking the English language.

C.5.1 QUALIFICATIONS OF PROJECT MANAGER(S)

The Project Manager(s) shall possess 1) a minimum of three years' experience within the last six years managing facilities of similar magnitude and scope of the total requirement of the contract, and 2) a Certification of Training in this career field. Once approved to serve as Project Manager, the Project Manager shall not be changed without the written approval from COR. If designated Project Manager can no longer

serve as Project Manager, a résumé of the proposed new Project Manager shall be submitted to the COR. COR shall review the résumé within ten business days of receipt of résumé and inform Contractor of approval or disapproval of Project Manager. If disapproved, COR shall identify rationale for disapproval. This process shall continue until a new Project Manager is approved.

C.5.2 QUALIFICATIONS OF SUPERVISORY EMPLOYEE(S)

The Contractor shall employ competent supervisory personnel capable of training employees on methods of accomplishing the work performance and quality standards in this contract. The Supervisor(s) shall have experience with performance based and quality control processes, procedures, supplies, and equipment. The Supervisor(s) shall, at a minimum, have completed a supervisory training course for this type of work and have prior grounds maintenance supervisory experience in similar size facilities. The on-site supervisor(s) is required to be fully conversant in English. The COR shall be notified within two business days if there is a change in the supervisory personnel. Résumé of the new supervisory personnel shall be submitted to the COR within five business days to be kept in COR's contract file. Government reserves the right to approve/disapprove supervisory personnel.

C.5.3. QUALIFICATIONS OF OTHER CONTRACT PERSONNEL

The personnel employed by the Contractor shall be capable, trained and qualified in performing grounds maintenance type work. All employees must be fully conversant in English. Additionally, all personnel employed to perform Service shall undergo training of the IRS emergency procedures in the event of emergencies. The training shall be coordinated with the COR. Contractor shall submit an Emergency Procedures Plan to the COR ten (10) work days after start of contract performance, and annually thereafter. The plan shall include, at a minimum, how employees will respond to emergency procedures in case of emergency, how Contractor will communicate with employees in case of an emergency, and who the Government shall contact to inquire if all employees are accounted for. The plan shall be filed with the COR's contract file.

C.6 ENVIRONMENTAL/SAFETY REQUIREMENTS

General Requirements

The contractor, its employees and any subcontractors shall adhere to all Occupation Safety and Health Administration (OSHA), Environmental Protection Agency (EPA) and applicable state and local environmental, health and safety rules and regulations. The Memphis Service Center has established environmental, health and safety management requirements and procedures and requires all contractors to comply and participate with such plans and procedures.

The contractor shall notify the Government in writing of any changes necessary in supplies, procedures, or practices in order to comply fully with said rules, regulations or laws.

The IRS conducts unannounced Environmental Health and Safety (EHS) inspections throughout IRS work spaces, including operational areas. IRS maintains the right to stop any work where there is an immediate and serious threat to the safety and health of contractors or IRS employees or a serious threat to the environment. Inspection findings will be forwarded to the COR. If, during the contract, IRS personnel note any situations of non-compliance with federal, state, or local regulations, the contractor's environmental and safety

program/plan or IRS EHS policies and requirements, IRS personnel will verbally bring them to the attention of the CO and/or COR and will immediately follow up in writing. The abatement and any associated cost of violations shall be the responsibility of the contractor and/or the Government as determined by the CO with input from the COR and contractor.

Training Requirements

The contractor shall submit a training plan that includes but is not limited to the following required OSHA training topics: Hazard Communication; Personal Protective Equipment to be used; Hazardous Energy Control (lockout/tag/out) for affected employees. Training records for all employees working on the contract shall be submitted to the COR within 30 days of the contract.

Safety Data Sheets (SDSs)

The Contractor shall maintain a set of two binders of the SDSs for chemicals to be used on site, to include gasoline, lubricant oils, and pesticides. One binder will remain with the COR and the other with the facility's senior safety officer. Materials or supplies shall not be used in performance under this contract or placed/stored on Government property until the applicable Safety Data Sheets (SDSs) have been submitted to the COR, for approval, and filed in the appropriate SDS binders.

Personnel Safety

Safety for all personnel stationed at or visiting this facility is the primary concern of the Government. The contractor, Project Manager (PM), supervisors, employees and sub-contractors shall always, take the immediate necessary action(s) to protect all personnel from any spills of non-hazardous materials (water, food, beverages etc.), tripping hazards, water, snow, or any other task. The contractor's employees shall take immediate actions to clean, treat, wipe up, rope off or otherwise take control of any situation that endangers the health or safety of the occupants of this facility. The contractor's employees shall notify the COR, Custodial Work Inspector (CWI), the Building Manager, Security Guards or PM as quickly as possible that such a condition exists (any spill encountered that is not identifiable as non-hazardous must not be touched and immediately reported to the COR, Facility Safety Officer, and the Building Manager for instructions).

Personal Protective Equipment

The contractor shall assess potential hazards associated with each type of tasks employees will be performing and provide all contractor personnel with the appropriate

personal protective equipment (PPE) required by OSHA or any other state or local laws/regulations including, but not limited to hand, foot and eye protective equipment.

Use of Chemicals

All chemicals brought on site to perform work including gasoline, oil, and pesticides. Shall be removed at the end of the day. Nothing can be stored at the facility property. All waste produced by contract activities shall be removed and disposed of in accordance with federal, state, and local regulations.

Environmental and Air Emissions

The contractor shall not cause any air emissions that would be subject to environmental permitting or control requirements. The contractor shall control emissions from activities on-site in accordance with the federal, state and local requirements.

The Contractor shall be responsible for all fines, fees, citations, etc., due to negligence that results in environmental or safety related issues.

Environmental/Safety Fines

The contractor shall be responsible for all fines, fees, citations, etc., due to negligence that results in environmental or safety related issues.

The Contractor shall take every precaution to ensure that if available, only safe and environmentally preferable products are used. Preference shall be given to products that meet the following: United States Department of Agriculture (USDA) - designated bio-based products, Green Seal Certified Products, Comprehensive Procurement Guidelines (CPG), and/or applicable Executive Orders.

BIO-BASED PRODUCTS/SERVICES

The Government requires products used and performed on its facilities to be Bio-based products. These products shall be commercial or industrial products that are composed in whole, or in significant part, of biological products or renewable domestic agricultural materials or forestry materials.

BIOBASED PRODUCT REPORTING

The Contractor shall provide the required Biobased purchasing data using the United States Department of Agriculture (USDA) online reporting tool annually (Attachment 2) before October 30th. The reporting tool can be found at:

<http://www.biopreferred.gov/FARReporting/FARReporting.xhtml>.

The list of Biobased products can be found at:

<http://www.biopreferred.gov/ProductCategories.aspx>

The Contractor is responsible to keep current on additional Biobased products designated by the USDA and available for use in the performance of this Contract.

Additional information can be found at www.biopreferred.gov. The necessary reporting templates and step by step instructions are included in Attachment 1 and Attachment 2.

C.7 QUALITY CONTROL

The Contractor shall establish a comprehensive Quality Control Program as described below to assure the requirements of the contract are provided as specified.

C.7.1 QUALITY CONTROL PLAN (QCP)

The Contractor shall submit a copy of its Quality Control Plan (QCP) to the COR for review and approval within a time period mutually agreed upon (but no later than 30 days). The basic tenet of the plan is that the Contractor is responsible for quality control. All methods, procedures, and forms shall support this concept. The Contractor may not begin work until its QCP has been approved by the COR. The QCP shall address/include, at a minimum, the following:

- a. An inspection system that is tailored to the specific grounds covered under the terms of the contract, and which covers all services specified in the contract.
- b. A system for identifying and correcting deficiencies in the quality of services before the level of performance becomes unacceptable and/or the Government inspectors point out the deficiencies.
- c. A system to ensure that the Contractor's employees are notified of deficiencies found in their areas of responsibility; that the noted deficiencies are corrected (if possible); and that these employees are counseled/retrained as necessary to ensure that deficiencies do not recur.
- d. A system that provides for Government access to all Contractor documentation, reports, and files (to include any forms on which quality control inspections are documented) with respect to Contractor quality control inspections and any corrective actions taken.
- e. How the Contractor's corporate/home office will provide contract support, services and controls.
- f. The identity of all personnel who will be performing QCP inspections by name, title, and type of inspection each is authorized to perform. Note: The person designated to perform the work inspection shall not perform Quality Control Inspections.

The COR will return, within three (3) business days of receipt by the Government, the QCP to the Contractor approved or requiring revisions/corrections by the Contractor. If revisions/corrections are required, the Contractor shall resubmit its QCP within five (5) days of receipt from the COR with the requested revisions or corrections.

Revisions/corrections, if any, to the Contractor's QCP during the life of the contract shall be made in these specified timeframes respectively. The Contractor shall not implement any change to its QCP prior to review and approval by the COR.

C.7.2 QUALITY CONTROL (QC) INSPECTIONS

In addition to the IRS' inspections, the Contractor shall perform its own Quality Control Inspections by qualified personnel (i.e. personnel being sufficiently knowledgeable of all technical aspects covered under this contract which would allow identification/discovery of improperly performed services). The documentation must be signed and dated by the inspector at the time the inspection is completed. All completed inspection reports shall be available to the COR.

C.7.3 IRS/CONTRACTOR MEETINGS

The Contractor or Contractor Representative(s) and COR shall meet at least monthly, or as often as the COR determines to be necessary, to discuss contract performance, identify and resolve all problems, and keep lines of communication open. A mutual effort shall be made to resolve all problems identified during these meetings, e.g., effectiveness of quality control; corrective action plans; proposal submittals for extra services; management of subcontractor(s) if applicable; problems impacting overall contract performance/service delivery, etc.

C.8 QUALITY ASSURANCE

The Government will assure quality of services through its Quality Assurance Surveillance Plan (QASP). Government reserves the right to make adjustment to its QASP as deemed necessary and without concurrence from Contractor.

C.9 QUALITY REQUIREMENTS – BASIC SERVICES

All of the area inside the perimeter fence and a distance of 10 feet outside the fence shall be covered by this contract. Services to be provided as Basic Services and defined standards for each of the processes involved are listed in Paragraph C.1.2. An inventory of grounds to be maintained shall be provided. Grounds Maintenance Inventory, and a listing of types of trees, plants and flowers to be planted and maintained shall be provided that lists types of trees and flowers.

C.9.1 OBJECTIVES

Services shall be performed by the Contractor on a continuous cycle to maintain evenly cut grass, neatly edged, free of weeds and debris; weed-free beds of healthy, correctly pruned, fertilized, cultivated, mulched plants and flowers; straight standing, mulched, healthy trees free of insects and disease; and grounds free of leaves, pine cones, needles, straw, and other debris. Grounds shall reflect an overall well-manicured

appearance, maintained in a manner that prolongs life and sustains a healthy appearance.

C.9.2 SERVICES INCLUDED

The Contractor shall maintain all plants, trees, shrubs, ground cover, and lawns in a manner that prolongs life and sustains a healthy appearance. The Contractor shall seek to prevent pollution by, among other things, minimizing runoff. The following services shall be included in Basic Services: Grass cutting; edging; plant and shrub pruning; cultivation and mulching; fertilization; weed eradication; ditch/curb cleaning; fence line maintenance; raking; irrigation; grassing up to ten square feet; insects, pests diseases, and wildlife control and removal; and installation of "color". Defined standards for each of the processes involved are as follows.

C.9.2.1 GRASS CUTTING

All grassed areas shall remain at a uniform height not to exceed 4 inches. Grass cutting is to be accomplished free of scalping, rutting, bruising, and uneven and rough cutting. No grass trimmings shall be left in any of the beds or in the courtyards. Sidewalks shall be free of any resulting dirt and debris. Contractor shall ensure lawn mowers are powered off when traveling through building connections to courtyards/atriums.

Trimming operations (including with herbicides) shall be considered a part of grass cutting and shall be accomplished concurrently (same day) with grass cutting operation. Grass cutting will not be considered complete until all trimming operations are accomplished. Trimming operations shall not damage trees and shrubs. Trees, shrubs, flowers, or areas of grass which are killed or damaged as a result of the Contractor's work shall be replaced or repaired by the Contractor at no cost to the Government. Any branches that are growing outside the property boundaries shall be trimmed back so they do not hang over the fence line. Branches and/or vines shall not be permitted to grow through or be tangled in the fence wire.

C.9.2.2 EDGING

All sidewalks, driveways, street edges, curbs, and other paved areas shall be edged to maintain a clear zone immediately adjacent to the paved surface. Edged lines shall be neat and clean, providing a clear zone half inch wide by one inch deep, free of scalping, rutting, bruising, and uneven and rough cutting. Contractor shall be responsible for any damages done to the concrete during the edging process.

In conjunction with the performance of edging, all vegetation shall be removed from expansion joints and cracks in all paved surfaces, including sidewalks and parking lots in the parcel being edged.

C.9.2.3 PLANT AND SHRUB PRUNING

Prune or remove growth in front of windows, over entranceways or walks, around light poles, and in areas where vision is obstructed at street intersections. If an entire plant should die, Contractor shall remove the entire plant, including ground roots below ground level to a depth so as to avoid unnecessary soil excavation and ground disruption. If the hole is in a lawn area, the hole and any other surface damages caused by removal of the plant and/or shrub shall be grassed. If the hole is not in a lawn area, it shall be filled with topsoil and the surface prepared to match the surrounding surface. Contractor shall notify the COR in writing no later than the next business day of the type and location of dead plant(s) removed. Replacement of dead plants [not caused as a result of the Contractor's performance] will be accomplished as "Additional Services" as requested by the COR.

Shrubs, hedges, trees, and cultivated plants (excluding flowers) shall be pruned to:

- A. Remove new growth to evenly form and balance the plant in order to shape it to its natural growth habits.
- B. Remove dead, damaged or diseased wood; and
- C. Remove vines, tree sprouts, ground cover, or any other extraneous vegetative growth from under or on the plant.

C.9.2.3.1. Tree Pruning

All tree pruning shall be accomplished under the supervision of a certified tree worker or arborist (furnished by the Contractor) who is trained, experienced, and otherwise qualified in proper tree pruning techniques. A copy of the certification shall be provided to the COR five (5) calendar days prior to initiation of any tree pruning. Trees shall be pruned to evenly form and balance the tree, promote proper health and growth, to respond to damage inflicted by natural or human causes, and to prevent interference with pedestrian and vehicular traffic. Trees shall be pruned in accordance with the following guidelines to selectively remove unwanted growth and encourage trees to grow or respond in a desired manner:

- (1) Remove dead, damaged, or diseased wood or structurally weak limbs that may cause a safety hazard or unsightly appearance, including the removal of dead palm fronds.
- (2) Remove branches that extend over building and endanger roofs, eaves, and windows; obstruct lighting from poles; or hang within 8 feet vertically over sidewalks, parking lots, and driveways.
- (3) Provide clearance for buses, moving vans, and similar vehicles along streets.
- (4) Cut back branches that overhang or grow into power lines. Anticipate the effects of wind on branches that might fall on power lines and cut back accordingly. Shape the entire tree rather than notch the top.
- (5) Remove growth of small trees in front of windows, over entranceways or walks, and those that will obstruct vision at street intersections.

- (6) Remove sprouts that grow from the trunk. Remove sprouts to the height of the first major lateral limb.
- (7) Branch stubs shall not be allowed. All branches shall be pruned (removed) back to the next major limb or the tree trunk. Pruning cuts shall be performed in a manner that leaves the branch collar exposed (with no stub beyond the branch collar).

C.9.2.4. CULTIVATION AND MULCHING

Shrubs, hedges, and flowerbeds shall be cultivated and mulched as necessary to maintain a healthy and well-groomed appearance. Mulch shall match throughout the property and shall be free of foreign material. Mulch shall be applied in appropriate amounts, for example, two to three inch layer over well-drained soils, and thinner layer on poorly-drained soils. All bed edging shall be realigned as needed. Mulch shall be applied out to the tree's drip line (if possible) and not piled against the tree trunk. The appearance of mulch ring shall resemble that of a "donut", not a "volcano".

Note: Mulch is to be applied to courtyards on weekends or other non-work IRS day, as approved by COR.

C.9.2.5 FERTILIZATION

The Contractor shall ensure that correct soil conditions are maintained for each tree, shrub, flower, grass or plant in order to promote optimum growth, correct environment, and obvious good health for the species of plant, e.g., grass shall be of a lush, green color.

Fertilizer used shall be of a balanced type that contains the appropriate nutrients and shall not be offensive to the smell. Fertilizer shall be delivered in the original, unopened containers bearing the manufacturer's chemical analysis, name, trade name, trademark, and indication of conformance to state and federal laws. In lieu of containers, fertilizer may be furnished in bulk if accompanied by a certificate indicating the above information with each delivery.

C.9.2.6 WEED ERADICATION

All areas of the property, including parking areas or paved walkways around the building, and ponds (wet or dry), shall be free from all weeds, wild onions and other foreign grasses at all times during performance on this contract. If plant(s), tree(s), etc. damaged or killed as a result of Contractor's performance, Contractor shall replace the plant(s) and/or trees(s) with equal species and size, at no additional cost to the Government.

Contractor shall adhere to the following when using herbicides:

- (1) Control Methods. The Contractor shall utilize only herbicides registered by the EPA and applicable state lead agency for the use intended. Within thirty (30)

calendar days after award of the contract, and ten (10) calendar days thereafter, prior to introducing a herbicide for usage, the Contractor shall submit the SDS to the COR for each herbicide intended to be used. Use shall be in strict compliance with label directions for the control of the target weeds. Any proposed changes in approved herbicide usage shall be submitted to the COR, along with documentation of EPA approval, at least five working days in advance of the anticipated need.

- (2) Herbicide Use Records. The Contractor shall maintain records of all herbicide usage on a contractor provided form. This form shall be filled out as weed control operations are performed and provided to the COR within five (5) work days upon request.
- (3) Herbicides shall be applied in courtyards on weekends or other IRS non-regular workday, as approved by COR.

Extreme care shall be exercised to avoid entry of herbicides into drainage structures, streams, ditches, etc. All work shall be in accordance with federal, state, local, and installation laws and regulations. Contractor shall be responsible for obtaining all applicable licenses/permits, and Contractor shall provide to the COR, within one (1) business day upon request, proof of current license from the State of Tennessee for each person performing vegetation/weed control on this contract.

C.9.2.7 DITCH/CURB CLEANING

All ditches, inlets, outlets, and culverts shall be cleared of sediment, vegetation, and debris to allow unrestricted flow of water.

C.9.2.7.1. Natural Area Cleaning

All natural areas shall be cleared of all debris to include fallen limbs and branches that will be cut and disposed in such a manner that damage will not occur to the tree, other trees, or improvements. Hanging limbs / branches shall be pruned in accordance with C.9.2.3.1.

C.9.2.8 FENCE LINE MAINTENANCE

Fence line maintenance shall provide security effectiveness as well as aestheticism. No branches or vines shall exist in or extend over the fence less than twenty feet high. There shall be no deep ruts or holes under or at the fence line at any time. The fence line requirements include an area extending ten feet outside the fence, and ten feet inside the fence. Grass, weeds, trees (less than three inches in diameter at ground level), and all other vegetative growth to ground or pavement level shall be eliminated within ten inches on both sides of fence through a method to avoid erosion. Residue of work generated by fence line maintenance shall be removed and disposed of off the property the same day.

C.9.2.9 RAKING

The Contractor shall remove leaves, pine straw and pine cones, limbs, and all other debris from the raked area to maintain a neat and clean appearance. All debris shall be disposed of off the property the same day raking occurs. Throughout the year, the Contractor shall remove minor accumulations due to isolated leaf drop and shall check all storm drain openings on the premises and remove any accumulated leaves or debris. Care shall be taken to remove leaves in existing mulched areas to maintain a neat and clean appearance

C.9.2.10 IRRIGATION

The Contractor shall regulate irrigation of grassed areas, shrubs, trees, flowers, and ground cover plants in accordance with their needs. The Contractor shall coordinate with the Operations & Maintenance (O&M) contractor, who is responsible for operation and maintenance of the Rainbird Irrigation System, in developing a watering schedule. Contractor shall ensure that irrigation requests are the amount necessary to preserve healthy plant life throughout the Campus.

The watering schedule for the upcoming growing season shall be established by a person on the Contractor's staff who has training on the Rainbird Irrigation System and submitted to the COR prior to April 15th of each year. The Contractor shall apprise the O&M contractor on a continual basis, (copying the CORs for this contract and O&M Contract) advising of changes that need to be made, e.g., more or less water in specific areas. Contractor shall inform the O&M contractor in advance of any scheduled service that could be hampered by the irrigation system being turned on in a specific area at other than scheduled times.

The Contractor shall inform the O&M Contractor (copying the CORs for this contract and O&M contract) of any instances of excessive quantities of water or rates of application which cause waste of water, erosion, run-off, or ponding. Irrigation operations shall be conducted in a manner and at time intervals to prevent the least disruption to employees. The Contractor shall be responsible for replacement of sprinkler heads, other equipment, or property damaged by its employees. Replacements shall be of the same make, manufacturer, and model, if available, as existing equipment or property. If the same is not available, the Contractor shall replace with an equal or better at no additional cost to the Government. The Contractor shall promptly report any damage to the COR.

C.9.2.11 GRASSING - UP TO TEN (10) SQUARE FEET

The Contractor shall ensure there are no bare or thinning spots in the turf (up to 10 square feet) at all times during performance on this contract. Contractor shall notify COR of any bare/thinning spots beyond ten square feet within one business day of noticing bare spots. Contractor shall grass and/or regrass whenever necessary to maintain the uniform appearance of the turf. (See Additional Services Section C.9.3, Grassing, for maintenance beyond 10 square feet.) Contractor shall mark the areas in the property that are grassed and/or re-grassed on the day grassing /re-grassing is

performed. Grassed areas that fail to develop noticeable growth within three (3) weeks of grassing shall be re-grassed by the Contractor at no additional cost to the Government. Grassed areas that die within one (1) year after grassed or re-grassed shall be redone by the Contractor at no additional cost to the Government. Contractor shall coordinate with COR to ensure both parties are in agreement with dates areas are grassed and/or re-grassed.

C.9.2.12 INSECTS, PESTS, DISEASES AND WILDLIFE CONTROL AND REMOVAL

Contractor shall provide services necessary for the control, removal and eradication of insects, pests, and diseases throughout the exterior portion of the property to include the courtyards (with the exception of the following areas: termite bait stations, the outer foundation of the building, and the guardhouses) to ten (10) feet beyond the fenceline. This include, but is not limited to, moles, ants/ant hills, and pests and insects that feed on outdoor vegetation, raccoons, snakes, etc. (Service to the termite bait stations, the outer foundation of the building, and the guardhouses will be performed by the janitorial and pest control contractor.)

Contractor shall be responsible for the control of pests and diseases of the trees, shrubs, and plants, including but not limited to bagworms, and shall take immediate action to eradicate any such diseases or infestations that occur. Any diseases found should be noted on the Ground Maintenance Daily Report, with location and plan of treatment.

The Courtyards shall be free and clear of all wildlife (including but not limited to geese, ducks, birds) and animal droppings to the maximum extent possible. Removal of all wildlife shall be in accordance with all State and Federal Regulations. Contractor shall be responsible for obtaining all permit(s) required by the State of Tennessee or other government entities for the removal of wildlife.

Eradication programs shall be continuously in effect and there shall be no signs of infestations. Additional inspections and treatments shall be applied as required at no additional cost to the Government. Contractor shall respond to any complaints within 24 hours, or in case of an emergency such as swarming bees or any event that poses imminent danger, Contractor shall respond within fifteen (15) minutes.

A Pest Control Plan that covers all of the exterior property (with the exceptions of the areas noted above) shall be submitted within a timeframe mutually agreed upon (but no later than 30 days) after start of contract performance, and annually thereafter. The plan should detail proposed methods for control, removal, and/or eradication including labels and Safety Data Sheets for all chemicals to be applied, dates, amounts, locations, frequency, etc. and include a copy of the Pesticide Applicator Certificate or License for contractor's representative who will be performing on-site service under this contract. The plan shall also include mosquito breeding control measures for wet detention ponds, repellent measures for Mockingbirds, etc. Upon receipt of the Pest Control Plan, the COR will render a decision regarding its acceptability within ten (10)

working days. All pesticides used shall comply with the provisions of the Federal Insecticide, Fungicide, and Rodenticide Pesticide Control Act of 1972, Public Law 92516, and the regulations issued thereunder. Copies of all Safety Data Sheets shall be submitted to the COR for all pesticides used.

Contractor may use approved mechanical or electronic devices integrated with pesticides upon prior approval from the COR.

C.9.2.13 INSTALLATION OF “COLOR”

In the Spring and Autumn seasons, the Contractor shall plant flowers (annuals and/or perennials), add mulch, etc., as appropriate and as previously approved by the COR, in the beds provided at the following locations: main entrance sign on Getwell; circle outside Module E; entrances at Modules AB, BC, FG, GH, AJ and E; and the three courtyards. It is estimated that 2,100 flowers will be planted during the Spring season and 2,100 during the Autumn season. Planting shall take place at the appropriate time in order to ensure health and growth of the flowers. The Contractor shall coordinate with the O&M contractor to ensure that the planting occurs during the operable schedule of the irrigation system. The Contractor is responsible for maintaining the beds, ensuring they are weed-free and replacing any plants that die within a year, at no cost to the Government.

C.10 ADDITIONAL SERVICES

Performance of Basic Services works described herein in excess of the frequency established by the Contractor and Government will be considered Additional Services, and shall follow the ordering process described in Section C.10. Contractor shall not perform any Additional Services unless ordered by the Government. Additional Services does not include re-performance of works to correct previous unsatisfactory performance, and shall be provided at the rates specified in the contract for Additional Services. The services described below are considered Additional Services and the quality requirements established shall be met whenever Additional Services are ordered by the Government.

C.10.1 TREE REMOVAL, INCLUDING STUMP AND ABOVE GROUND ROOT REMOVAL

Trees, including their stumps and above ground roots, shall be removed to a depth below normal ground elevation to avoid unnecessary soil excavation and ground disruption. All debris shall be disposed of off the property the day of removal. If in a lawn area, any stump hole and any other surface damage caused by removal, shall be grassed as specified herein. If the hole is not in a lawn area, it shall be filled with topsoil and the surface prepared to match the surrounding surface. The cost of all work shall be included in the price quote for tree removal.

C.10.2 FILLING HOLES

The Contractor shall fill holes in the lawn around the sprinkler heads and in other areas as holes are observed and/or as directed by the COR.

C.10.3 GRASSING BEYOND TEN (10) SQUARE FEET

The Contractor shall ensure there are no bare or thinning spots in the turf (beyond 10 square feet) at all times during performance on this contract. Contractor shall grass and/or re-grass whenever necessary to maintain the uniform appearance of the turf. Contractor shall mark the areas in the property that are grassed and/or re-grassed. Grassed areas that fail to develop noticeable growth within three (3) weeks of grassing shall be re-grassed by the Contractor at no additional cost to the Government. Grassed areas that die within one (1) year after grassed or re-grassed shall be redone by the Contractor at no additional cost to the Government. Contractor shall coordinate with COR to ensure both parties are in agreement with dates areas are grassed and/or re-grassed.

C.10.4 EROSION CONTROL

Soil erosion damages beyond that which grassing can control shall be repaired with appropriate soil type to return the area to normal ground elevation. If area adjoins a grassy area it shall be fertilized and seeded to blend in with the area. Repaired grassy areas shall be firmly established. Areas which again erode within one year from date of repair shall be repaired by the Contractor at no additional cost to the Government. (Contractor shall coordinate with COR to ensure both parties are in agreement with dates areas are repaired.) Erosion in pond areas may require installation of additional rip-rap of equal size to that in place.

C.10.5 UNDERBRUSH REMOVAL

All brush, weeds, and small trees (3 inches and below in diameter at ground level) shall be cut back to within 1 inch of ground level, removed from the property, and disposed of in accordance with standard commercial practices for industry. Any vegetation to be saved will be marked by the COR prior to starting work. Any debris generated from cutting underbrush or found in the area (e.g., limbs, dead trees, trash, etc.) shall be removed from the property and disposed of offsite in accordance with local ordinance or best commercial practices.

C.10.6 SEVERE SHRUB PRUNING

Severe pruning of shrubs shall consist of removal of all or a major portion of the total growth of the shrub. The extent of pruning will be indicated by the COR, but generally shall consist of pruning large shrubbery to a level approximately 1 to 3 feet above ground level. Debris resulting from the pruning process shall be disposed of off the property the same day of pruning.

C.10.7 TREE AND SHRUB REPLACEMENT

To the extent possible, all tree and plant replacement(s) shall be those included known to do well in the tri-state area of West Tennessee, East Arkansas, and North Mississippi, and to blend with existing ones.

- (1) Trees – Trees established shall be compatible to the Southwest Tennessee area, and in accordance with the existing ones, with trunk diameters (measured 6 inches up from the ground) of at least 3 inches. Trees shall be planted in accordance with accepted horticultural standards, including fertilization, mulching, and watering.
- (2) Shrubbery – Shrubbery ordered shall be compatible to that of the Southwest Tennessee area, and shall be in accordance with the existing ones on the property of the one, three, or five gallon class size. Shrubs shall be planted in accordance with accepted horticultural standards, including fertilization, mulching, and watering.

All plants shall be nursery grown and shall bear certification indicating species, common name, and grade. Certification shall be submitted to the COR within ten (10) calendar days prior to installation. Plants shall be healthy, living specimens that are considered to be number one grade stock, and planting procedures shall be in accordance with accepted nursery standards. Contractor shall provide continuing care to ensure proper development of the replacement(s) [see note below]. All plants that die or fail to develop noticeable growth within one year of planting by the Contractor shall be replaced by plants of like size and type and at no additional cost to the Government.

Note: Replacement of trees and shrubs shall be performed under Additional Services; however, once replaced, the replacement(s) shall be included in the Grounds Maintenance Inventory for Basic Services maintenance.

C.10.8 INSTALLATION AND REMOVAL OF TREE SUPPORTS

Tree supports such as stakes, tree ties, and guide wires shall be installed as needed and monitored to straighten trees due to the unexpected high winds, etc. (Currently, some trees already have support installed). Tree supports shall be kept in good condition (i.e., free from rust and debris, no broken parts, etc.), function properly at all times, and removed at the appropriate time (i.e. not prematurely or too late) to prevent destruction to the tree. Guide wires shall not be removed prematurely from trees resulting in misshaping or death of the tree. Replacement trees and/or guide wires will be at the expense of the Contractor if the replacement is due to the untimely removal of tree at Contractor's discretion. To the extent possible, all replacement trees and plants shall be those included known to do well in the tri-state area of West Tennessee, East Arkansas, and North Mississippi, and to blend with existing ones.

C.10.9 MISCELLANEOUS SERVICES

Miscellaneous services consist of any services within the scope of the Contract required by the Government and not address in paragraphs C.9.1 through C.9.9. The ordering procedures for miscellaneous services shall be followed as outlined in Section C.10.

C.11. ADDITIONAL SERVICES ORDERING, PERFORMANCE, AND PAYMENT PROCEDURES

- a. Work identified as Additional Services is optional work that the Government may order on an as-needed basis. The Government makes no guarantee to order Additional Services work. A contract line item ceiling price for Additional Services, which if exceeded by Contractor will be at its own risk, shall be established in the contract at the time of contract award, and shall be adjusted in writing by the CO through modification(s) if needed. The ceiling price for each line item for Additional Services is a cumulative total applicable to all individual work orders (as described in "c" below) placed by the Government under the terms of the contract.
- b. Authorized Ordering Official. The Contracting Officer's Representative, or other representative designated in writing by the Contracting Officer.
- c. Individual Work Order(s). A work order for the performance of Additional Services work shall be issued to the Contractor by the Authorized Ordering Official. The cumulative value of all individual work orders shall not exceed the contract line item ceiling price established in writing by the Contracting Officer.
- d. Each work order will be issued in writing and contain, as a minimum, the following information:
 - 1) Individual Work Order Number;
 - 2) Applicable Contract Line Item Number;
 - 3) Date Of Order;
 - 4) Description of Work;
 - 5) Work Order's Firm-Fixed-Price;
 - 6) Scheduled Delivery/Completion Date; and
 - 7) Authorized Ordering Official's Name And Signature.
- e. Performance Schedule. An individual performance schedule for each work order shall be determined when services are requested and be included in the work order. Performance is to be mutually agreeable between the Ordering Official and contractor. The contractor has a responsibility to reasonably accommodate the government's need for completion within the required timeframe.

- f. Verbal Orders. Verbal work order(s) may be issued in times of emergency ONLY (e.g. emergency conditions that threaten personnel, property, or MIRSC operations), when a written order cannot be issued to the Contractor timely. The Contractor and Ordering Official shall ensure a clear understanding of (1) the work to be performed; (2) work order ceiling price; and, (3) delivery/completion date. All verbal orders shall be confirmed in writing by the Ordering Official and acknowledged by the Contractor within 24 hours, or the next business day.
- g. Payment. Firm-fixed-priced work orders will be paid in accordance with the Prompt Payment Act.

C.11.1 ORDERING PROCESS FOR INDIVIDUAL WORK ORDERS EQUAL TO OR LESS THAN \$3,000

- a. Authorized Ordering Official is authorized to order contract services up to \$3,000 per work order.
- b. Contractor shall submit a firm-fixed price quote to Authorized Ordering Official. Authorized Ordering Official shall evaluate price quote for price reasonableness determination through any methods appropriate. (Authorized Ordering Official shall negotiate a lower price if deemed necessary).
- c. Once price quote is determined fair and reasonable, Authorized Ordering Official shall issue a work order as described in Section C.11.d above.
- d. Upon completion of work, Authorized Ordering Official shall perform receipt and acceptance against the applicable contract line item number (CLIN) for Additional Services.

C.11.2 ORDERING PROCESS FOR INDIVIDUAL WORK ORDERS GREATER THAN \$3,000

- a. Only the Contracting Officer is authorized to approve individual work orders exceeding \$3,000.
- b. Contractor shall submit firm-fixed price quote(s) to Authorized Ordering Official. If any portion of work will be subcontracted, Contractor shall submit at least three (3) firm-fixed price quotes from at least three different vendors to Authorized Ordering Official, unless waived by the Contracting Officer). Authorized Ordering Official shall submit all quotes to CO. CO shall review each quote and select the quote that is most advantageous to the government. CO shall approve quote in writing to Authorized Ordering Official.

- c. Upon approval by CO, Authorized Ordering Official shall issue a work order as described in “d” of Section C.11 above.
- d. Upon completion of work, Authorized Ordering Official shall perform receipt and acceptance against the applicable contract line item number (CLIN) for Additional Services.

C.12 FEDERAL REQUIREMENTS

- A. The Contractor shall comply with all applicable Federal, state and local laws, regulations and codes, including any supplements or revisions. The Contractor shall obtain all applicable licenses and permits. The Government shall not be responsible for costs incurred by Contractor to obtain licenses and permits, etc.
- B. The Contractor shall use biobased and EPA-designated products for landscaping services.

FAR REPORTING CATEGORIES AND USDA DESIGNATED BIOBASED PRODUCTS (in accordance with FAR 52.223-2)

Federal Government Contract and/or Order Number	
Name of Vendor Contract Point of Contact:	
E-mail address of Contract Point of Contact:	
Contractor DUNS Number	
Category	\$ Amount Purchased
(USDA catalog is the authoritative source)	
Cafeteria/Food Services	
Dishwashing Products	
Disposable Containers	
Disposal Cutlery	
Disposable Tableware	
Food Cleaners	
Oven and Grill Cleaners	
Construction	
Asphalt Restorers	
Carpets	
Composite Panels – Acoustical	
Composite Panels – Interior Panels	
Composite Panels - Plastic Lumber	
Composite Panels – Structural Interior Panels	
Composite Panels – Structural Wall Panels	
Concrete and Asphalt Release Fluids	
Dust Suppressants	
Erosion Control Materials	
Floor Coverings (Non-Carpet)	
Fluid-Filled Transformers – Vegetable Oil-Based	
Interior Paints and Coatings – Latex and Waterborne Alkyd	
Interior Paints and Coatings – Oil-based and Solventborne Alkyd	
Plastic Insulating Foam for Residential and Commercial Construction	
Roof Coatings	
Water Tank Coatings	
Wood and Concrete Sealers – Membrane Concrete Sealers	
Wood and Concrete Sealers – Penetrating Liquids	
Wood and Concrete Stains	
Custodial/Janitorial/Housekeeping	
Adhesive and Mastic Removers	
Air Fresheners and Deodorizers	
Asphalt and Tar Removers	
Bathroom and Spa Cleaners	
Carpet and Upholstery Cleaners - General Purpose	

Carpet and Upholstery Cleaners – Spot Removers	
Concrete and Asphalt Cleaners	
Floor Cleaners and Protectors	
Floor Strippers	
Furniture Cleaners and Protectors	
General Purpose Household Cleaners	
Glass Cleaners	
Graffiti and Grease Removers	
Industrial Cleaners	
Ink Removers and Cleaners	
Laundry Products – General Purpose	
Laundry Products – Pretreatment/ Spot Removers	
Multipurpose Cleaners	
Hospitality/Lodging/Personal Care	
Bath Products	
Bedding, Bed Linens, and Towels	
Cuts, Burns, and Abrasion Ointments	
Foot Care Products	
Hair Care Products – Conditioners	
Hair Care Products - Shampoos	
Hand Cleaners and Sanitizers – Hand Cleaners	
Hand Cleaners and Sanitizers - Hand Sanitizers	
Lip Care Products	
Topical Pain Relief Products	
Landscaping	
Animal Repellents	
Compost Activators and Accelerators	
Fertilizers	
Mulch and Compost Materials	
Lubricants, Fluids and Greases	
2-Cycle Engine Oils	
Chain and Cable Lubricants	
Corrosion Preventatives	
Firearm Lubricants	
Forming Lubricants	
Gear Lubricants	
Greases	
Greases – Food Grade	
Greases – Multipurpose	
Greases – Rail Track	
Heat Transfer Fluids	
Hydraulic Fluids – Mobile Equipment	
Hydraulic Fluids – Stationary Equipment	

Metalworking Fluids -- General Purpose Soluble, Semi-Synthetic, and Synthetic Oils	
Metalworking Fluids -- Straight Oils	
Multipurpose Lubricants	
Penetrating Lubricants	
Pneumatic Equipment Lubricants	
Slideway Lubricants	
Turbine Drip Oils	
Miscellaneous	
Candles and Wax Melts	
Films -- Non-Durable	
Films -- Semi-Durable	
Expanded Polystyrene Foam Recycling Products	
Packing and Insulating Materials	
Operations and Maintenance/Facilities Maintenance	
Bioremediation Materials	
Blast Media	
De-Icers -- General Purpose	
Electronic Components Cleaners	
Parts Wash Solution	
Sorbents	
Printing (Contractor and Government)	
Inks	
Inks - News	
Inks - Printer Toner (Greater than 25 pages per minute)	
Inks - Printer Toner (Less than 25 pages per minute)	
Inks - Sheetfed (Black)	
Inks - Sheetfed (Color)	
Inks - Specialty	
Vehicle	
Diesel Fuel Additives	
Greases - Truck	

Attachment #2

Contractor Reporting of Purchases of Designated Biobased Products

Pursuant to a legislative mandate in the 2008 Farm Bill, prime contractors are required to report the category of product, type of product, and dollar value of all USDA designated biobased products that were purchased in the performance of Federal contracts. Federal contractors are required to report annual biobased product purchases made under their service and construction contracts. Based on the Federal Acquisition Clause 52.223-2, Affirmative Procurement of Biobased Products under Service and Construction Contracts, reporting of biobased product purchases is completed through a portal in the System for Award Management (SAM) <http://www.sam.gov>.

If a contract contains FAR Clause 52.223-2, the contractor must report all biobased purchases through SAM.

The Reporting Requirement(s):

- The reporting requirement became effective September 3, 2013;
- It applies to services and construction contractors where contracts have a FAR Clause 52.223-2 Affirmative Procurement of Biobased Products under Service and Construction Contracts, requiring the reporting of biobased product purchases;
- Contractors will report their purchases of biobased products to a reporting portal within the System for Award Management (SAM);
- Contractors will report the category, product type and dollar value of any USDA designated biobased products purchased by the Contractor; and
- Reporting must be completed by the end of October for the previous entire fiscal year (October 1 - September 30).

To Meet the Requirement(s) Contractors must:

- Access <http://www.sam.gov>
- Complete the required information within the portal and copy your Contracting Officer
- If the applicable contract is not accessible in SAM, the contractor should contact their Contracting Officer.

Actions to Take to Meet Reporting Requirement(s) by Contracting Officers:

- Require a copy of the reporting data from the Contractor as required in FAR Clause 52.223-2;
- Remind the contractor, as necessary, of the requirement to report BioPreferred product types and dollar value, if any, into SAM at <http://www.sam.gov>. This includes any BioPreferred products used in performing contract-related services or in delivering contract-related products;
- Complete the Federal Procurement Data System (FPDS) data element 8L - Use of Recovered Materials. This field must be completed when the Contracting Officer include the clause in the contract for biobased products. Please select the appropriate value from the drop down menu;

- The FPDS data element 8L prompts the requirement in SAM for the Contractor to report the biobased product purchases, as a result, it is imperative that the appropriate value in 8L drop down menu must be filled out correctly.

The new SAM portal includes:

- Instructions on how to complete the required information;
- A user's guide for BioPreferred reporting;
- Frequently Asked Questions (FAQs); and
- SAM Help Desk toll-free number: (866) 606-8220.

Attachment #3

1.0 Contractor Employee On-Boarding Requirements

1.1 Paperwork Completeness and Accuracy

- a. The IRS will provide the vendor POC with the Risk Assessment Checklist (RAC), along with other required investigative forms (details in section 1.5 below).
- b. All forms must contain the full legal name that matches the applicant's identification (e.g. state issued id, passport, etc.)
- c. Vendors should ensure fields requiring social security numbers and phone numbers have the correct number of digits.
- d. The IRS will reject forms that are incomplete, illegible, inaccurate, and contradict other forms in the package.

1.2 Contractor Eligibility

All contractor/subcontractor employees submitted for staff-like access approval must be eligible for IRS contract employment to the best of the vendor's knowledge. In order to be approved for interim staff-like access, IRS will confirm that contractor/subcontractor employees first meet the following initial eligibility requirements:

1.2.1 U.S. Citizenship or Lawful Permanent Resident (LPR) status: Subjects must be US citizens or LPRs (dependent on position risk level) to be eligible for staff-like access. a. No documentation is required as proof of U.S. citizenship for subjects born in the United States. b. If subjects are foreign-born, vendor POC MUST provide the subjects' Alien Registration or "A" Number for verification of their status.

1.2.2 Selective Service Registration (for males born after 12/31/59): Vendor POC MUST provide the following documentation to the IRS:

a. Registered applicants: Official letters of verification can be obtained and saved via the Selective Service website at <https://www.sss.gov/verify/proof/>.

b. Non-registered applicants:

i. If the subject is foreign-born, vendors must provide a letter from the Selective Service stating the subject was not required to register or that the subject was required to register but it is too late.

ii. For US citizens or foreign-born subjects who were required to register but did not, the vendor must provide a written explanation as to why the non-registration was not knowing or willful.

1.2.3 Federal Tax Compliance: Subjects must be tax compliant and must remain compliant while actively working on IRS contracts.

a. IRS will check tax compliance – no documentation is required from the vendor POC.

b. Vendors are responsible for informing their applicants of this requirement.

1.3 Timeliness

a. Delays in any of the actions stated below will result in contractor/subcontractor employee onboarding delays and starting work on the contract.

b. All investigative forms and documentation are due to the IRS within 10 business days of receipt. If IRS approval is required to confirm the qualifications of proposed contractor personnel, i.e. key personnel, documents must be submitted within 10 days of receipt of this approval.

c. All individuals listed on the RAC should be fingerprinted within 5 business days after IRS sponsorship in USAccess. If an individual is not able to make an appointment within this timeframe, the vendor POC will provide documentation that an appointment was not available and provide the date of the scheduled appointment.

d. The contractor/subcontractor employee must accurately complete the eAPP application, if applicable, within 8 calendar days of receipt of the invitation. Failure to complete eAPP will result in not being permitted to work on the contract.

1.4 Investigative Forms/Documentation, Fingerprinting, and eAPP

a. Contract Profile: Following the award of the contract, the COR will need to submit this document to HCO Mailbox to establish the Contract within the Contract Management Module (CMM) system. This creates the record for contract and task order information in the CMM.

b. Master Survey / Position Designation Tool: Following this meeting, the COR will work with the Vendor POC to complete this questionnaire for each unique position type on the contract. This questionnaire asks the vendor POC and COR to identify the duties the subjects will be performing for IRS in order to determine risk level for the position. A separate Master Survey must be completed for each position type on the contract (i.e., Systems Administrator, Programmer, Clerk Typist, etc.). The results must be saved and sent to IRS PS. The Position Designation Tool is listed here- [Position Designation System \(PDS\) and Position Designation Tool \(PDT\) \(dcsa.mil\)](https://dcsa.mil/PositionDesignationSystem(PDS)andPositionDesignationTool(PDT))

c. Investigative Forms/Documentation: The IRS will provide the vendor POC with the following investigative forms for completion by each applicant requiring staff-like access:

i. Risk Assessment Checklist (RAC): The RAC is a summary Excel spreadsheet that captures information related to the subjects for whom the vendor is requesting staff-like access. The vendor POC must ensure that EVERY column in the RAC is completed accurately prior to submitting to the IRS. Failure to do so will result in a rejection of the RAC and a delay in the on-boarding process.

ii. OF-306, Declaration for Federal Employment (version 2023): Form must be completed and signed by each contractor/subcontractor employee requiring staff-like access.

iii. Non-Disclosure Agreement (NDA): Form must be completed and signed by each contractor/subcontractor employee requiring access to sensitive but unclassified (SBU) data. This form is not required to be submitted to Personnel Security. This form is for the COR records only.

iv. Form 13340, Information Provided Concerning the Disclosure and Authorization Pertaining to Consumer Reports pursuant to the Fair Credit Reporting Act (FCRA): Form must be completed and signed by each contractor/subcontractor employee requiring staff-like access.

v. Notice 1379, Tax Check Notice: Provide to subjects to inform them of IRS' intent to check their federal tax compliance at onboarding and annually thereafter while continuing to actively work on IRS contracts.

d. Fingerprinting and eAPP

IRS will enroll each subject in USAccess based on the information provided on the RAC. The USAccess system will send an email invitation to schedule a fingerprinting appointment. Individuals should be fingerprinted within 5 business days of receipt of the sponsorship email. Note that the USAccess email may sometimes be marked as SPAM. Subjects are asked to check their SPAM folders for the email.

Electronic Questionnaires for Investigations (eAPP): If contractor/subcontractor employees do not have a current federal background investigation already completed and favorably adjudicated at the appropriate risk level, they will receive an email with a link to complete the eAPP form online. The email will contain instructions for accessing the system, and guidance to assist if issues are encountered. Contractors and subcontractor personnel must complete eAPP within 8 calendar days of receipt of the email.

1.5 Contractor Training Requirements

a. Contractor/subcontractor employees must complete Security Awareness Training (SAT) within 10 business days of receiving approval of interim staff-like access.

b. Contractor/subcontractor employees must certify completion using the Form 14616, Contractor SAT Certification, and the Form 11370, Certification of Annual UNAX Awareness Briefing and provide these forms to the COR.

1.6 Security Badges

a. Contractor/subcontractor employees must accurately complete Form 13716A, Request for ID Media/Access Card for Contract Employee, and submit as a PDF document (no photocopies or pictures).

b. Contractor/subcontractor employees are responsible for:

i. Safeguarding their ID/access card.

ii. Wearing ID cards/security badges at or above the waist with photo facing out in an approved cover with no obstructions to the card.

iii. Reporting lost/stolen cards immediately to their COR, the local Facilities Management & Security Services (FMSS) physical security office, the Situational Awareness Management Center (SAMC), Treasury Inspector General for Tax Administration (TIGTA), and completing Form 4589, Lost or Forgotten ID Card Record.

1.7 Contractor Separation

a. The vendor POC is responsible for notifying the COR no later than one business day of a contractor/subcontractor employee separating (notification may also occur prior to separation).

b. If the contractor/subcontractor employee works more than one contract or task order, notification to multiple CORs may be combined.

c. The contractor/subcontractor employee is responsible for returning the following to the COR on or before their last day of work on the contract. Note that laptops and equipment are assigned to the individual, not the vendor and therefore must be returned upon separation:

i. IRS-issued badge and/or proxy card

ii. IRS keys

iii. IRS- issued laptop

iv. IRS furnished documents

v. IRS passports

vi. Any and all IRS data

vii. Any other items furnished or identified by the IRS

viii. Any other items or materials issued by the Agency for the contract.

Note:

IRM 10.23.2: “Staff-like Access” is authority granted to perform one or more of the following:

- Enter IRS facilities or space (owned or leased) unescorted (when properly badged);
- Possess login credentials to information systems (IRS or vendor-owned systems that store, collect, and /or process IRS information);
- Possess physical and/or logical access to (including the opportunity to see, read, transcribe, and/or interpret) Sensitive but Unclassified (SBU) data, wherever the location (See IRM 10.5.1 for examples of SBU data);
- Possess physical access to (including the opportunity to see, read, transcribe, and/or interpret) security items and products (e.g., items that must be stored in a locked container, security container, or a secure room, wherever the location). These items include, but are not limited to, security devices/records, computer equipment, Identification media. For details and further security requirements, see IRM 1.4.6.5.1, Minimum Protection Standards); or,
- Enter physical areas, wherever the location, that store/process SBU information (unescorted).

Staff-Like Access is granted to an individual who is not an IRS employee (and includes, but is not limited to: contractor/subcontractor employees, whether procured by IRS or another federal agency, vendors, delivery persons, experts, consultants, paid/unpaid interns, other federal employees, cleaning/maintenance employees, etc.), and is approved upon required completion of a favorable suitability/fitness determination conducted by IRS Personnel Security.

IRSAP Requirements - Submission of Security Forms and Related Materials (APR 2024) requires contractor/subcontractor employees needing staff-like access to IRS equities to be investigated by IRS Personnel Security (PS).